§ 180.184 Linuron; tolerances for residues.

* * * * *

0.5 part per million in or on celery; parsnips (with or without tops) and parsnip tops; and the forage, hay, and straw of barley, oats, rye, and wheat.

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days after its date of publication in the FEDERAL REGISTER file with the Objections Clerk, Environmental Protection Agency, Room 3175, South Agriculture Building, 12th Street and Independence Avenue SW., Washington, D.C. 20460, written objections thereto in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on its date of publication in the FEDERAL REGISTER (3–16–72).

(Sec. 408(e), 68 Stat. 514; 21 U.S.C. 346a(c))

Dated: March 10, 1972.

WILLIAM M. UPHOLT,
Deputy Assistant Administrator for Pesticides Programs.

[FR Doc. 72-3999 Filed 3-15-72;8:52 am]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5166]

[Utah 14586]

UTAH

Partial Revocation of Public Water Reserve No. 107

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

The Executive order of April 17, 1926, creating Public Water Reserve No. 107, as construed by Interpretation No. 160 of April 8, 1932, is hereby revoked so far as it affects the following described lands:

SALT LAKE MERIDIAN

T. 4 S., R. 23 E., (Protraction Survey Diagram No. 7A)
Secs. 23, 24, and 25, all land within a quarter mile of unnamed springs in Red Canyon.

The overall area of the lands described aggregates approximately 1,920 acres in Uintah County.

The lands are within the boundaries of the Dinosaur National Monument as established by the Act of June 8, 1906, 34 Stat. 225, as amended by the Act of September 8, 1960, 74 Stat. 857.

HARRISON LOESCH,
Assistant Secretary of the Interior.

MARCH 9, 1972.

[FR Doc.72-3984 Filed 3-15-72;8:50 am]

[Public Land Order 5167]

[Sacramento 4581]

CALIFORNIA

Addition to National Forest

By virtue of the authority contained in the Act of July 9, 1962, 76 Stat. 140, 43 U.S.C. section 315g–1 (1970), it is ordered as follows:

Subject to valid existing rights, the following described lands, acquired in an exchange made pursuant to section 8 of the Taylor Grazing Act of June 28, 1934, 48 Stat. 1272, as amended, 43 U.S.C. section 315g (1970), are hereby added to and made a part of the Toiyabe National Forest and hereafter shall be subject to all laws and regulations applicable to said National Forest.

MOUNT DIABLO MERIDIAN

T. 20 N., R. 18 E.,
Sec. 30, Lot 14.

The area described aggregates 80 acres in Sierra County.

HARRISON LOESCH,
Assistant Secretary of the Interior.

MARCH 9, 1972.

[FR Doc. 72-3985 Filed 3-15-72;8:50 am]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 19231; FCC 72-217]

PART 1—PRACTICE AND PROCEDURE

PART 15—RADIO FREQUENCY DEVICES

Biomedical Radio Telemetry Systems

Report and order. In the matter of amendment of Part 15 of the Commission's rules to exclude from the duty cycle requirement biomedical radio telemetry systems operating above 70 MHz. Docket No. 19231, RM 1727, RM 1739.

1. A combined notice of inquiry and proposed rule making in this proceeding was adopted by the Commission on May 19, 1971 (36 F.R. 9567, May 26, 1971). In the notice the Commission proposed to restrict operation of biomedical telemetry devices to selected frequency bands and to eliminate the duty cycle requirement for these devices which is currently applicable to miniature transmitters operating above 70 MHz under Part 15, except the band 88–108 MHz. The bands proposed are 73–74.6 MHz, 174–216 MHz, and 608–614 MHz. The Commission considered that interference to biomedical telemetry devices would be minimal in the proposed bands.

2. Part 15 of our rules now permits the operation of telemetering devices (and wireless microphones) in the FM broadcasting band 88–108 MHz. They are not limited in their duty cycle but emission bandwidths must be confined within a 200 kHz segment and they are not permitted to radiate in excess of 50 microvolts per meter at distances of 50 feet or more from the device. These devices must be type approved by the Commission. With the exception of these devices (telemetering and wireless microphones) and garage door openers, all low power communication devices using frequencies above 70 MHz are required by Part 15 to observe a duty cycle such that transmissions do not exceed 1 second in length and that each transmission be followed by a silent period of at least 30 seconds. See § 15.211(a)(3) of the Commission's rules.

3. Since June 1970, the Commission granted waivers to some 11 manufacturers of biomedical equipment authorizing the sale and use of such equipment until June 30, 1971, and extended them until March 15, 1972, without the duty cycle limitation, provided such equipment met all the emission requirements in § 15.211(a). This action permitted cardiac patients to be monitored on a continuous basis. The granting of these waivers was viewed by the Commission as only an interim measure. It is the Commission's view that the public interest would be better served by finding a generally interference-free environment in which they can be accommodated where, at the same time, it is improbable that they will cause interference to other users of the spectrum.

4. Devices operating under Part 15 are not permitted to cause harmful interference to duly authorized radio stations nor can they claim protection from such stations. Although the biomedical telemetering devices in question were developed originally to monitor cardiac patients, they also are being used now to watch over fetuses and newborn infants, to monitor patients recovering from surgery, and in other applications. Their use will undoubtedly be extended to other medical areas. Consequently, the Commission is concerned with the degree to which these devices might be susceptible to interference and the consequent adverse effects upon user patients. Manufacturers generally state that interfering signals have no direct effect on the patient since he is equipped only with a transmitter. Such signals would affect the receiver, however, triggering an alarm calling for the monitoring attendant to examine the patient and thus impairing the effectiveness of the overall system. As pointed out in the notice, repeated false alarms could lead to a "crying wolf" situation. On the other hand, strong signals could "swamp" out desired signals and render the receiver inoperative.

5. Comments from 27 parties have been filed in this proceeding. Twenty of these comments were submitted by companies that either presently manufacture or in-